

The Second, is in Page 61. line 3. &c. which very confidently relates, That the *Abbot of Westminster* exhibited his *Bill* to the *King* against the *Sheriffs* of *London*, for arresting and drawing out with force a privileged person out of the *Sanctuary* of *St. Martins le grand*, belonging to the said *Abbey*, &c. Which matter after due proceedings being heard in the *Court of Starchamber* before the *Lords* and others of the *Kings Council*, and *Hodey* and *Newton* Chief Justices: which Justices determining, that by Law the party ought to enjoy the privilege of *Sanctuary*, the *Sheriffs* were grievously fined in *Starchamber* by particular name. Which Sentence the *Lord Dier*, as he reported under his own hand, saw upon a reference to him and Justice *Southcote* out of the *Starchamber*, Trin. 11. Regine Eliz. concerning the *Sanctuary* of *Westminster*, &c. and the *Lord Dier* made this Note with his own hand. *Rota, per le Starchamber*. And this is a notable proof of the Jurisdiction of the *Court* for fining, &c. That the *Bill* was exhibited to the *King*, and that the two Chief Justices then did sit, and were Judges (among others) in that *Court*.

But this Case is too grossly mistaken, misreported both by the *Lord Dier*, (if this Report of him be true) and by the reverend Author of the *Justities* in sundry particulars: First, in the year, An. 29 H. 6. as his *Margin* quotes it, without any *Roll*, wherein to find it: when as it was Anno & Pat. 19 H. 6. parte 3. m. 3. insua, as the *Record* attests. 2ly. In the party Complainant; which he makes to be the *Abbot of Westminster*: affirming, the *Sanctuary* of *St. Martyns* belonged to the said *Abbey*; when as the plaintiffs were the *Dean and Chapter* of *St. Martyns the Great London*; being the *Kings own Free Chappel and Sanctuary*, not the *Abbot of Westminster*, and so a violation of the rights of the *King* and his *Crown*, as the *Kings Writ* thereon, and exemplification thereof, *Pro Decano & Capitulo Sancti Martini magni London*. assure us, and many other Records concerning *St. Martyns* being the *Kings Free Chappel*. 3ly. In the number of Defendants, the *Mayor* as well as *Sheriffs* of *London* being Defendants, as the *Kings Writ* to them inform us: 4ly. In the number of the privileged persons taken by force out of the *Sanctuary*, being not one, but five. 5ly. In the manner of proceeding; That the *Abbot* exhibited his *Bill* to the *King*, &c. when as the *Dean and Chapter* only petitioned the *King* in writing. 6ly. That the matter was heard in the *Court of Starchamber* before the *Lords* and others of the *Kings Council*: when as the *King* referred the examination of the *Right of the Sanctuary* and *Petition* to his *Chancellor* and *Treasurer*, to report the same unto him when examined; who by the *Kings* command called both the Chief Justices to their assistance: and when they had heard the *Records*, *Charters*, *Bills* and allegations of both parties; reported the whole matter and their opinions to the *King*, That the *Prisoners* ought to be restored to the *Sanctuary*; which the *King* accordingly ordered, by advise of others of his *Council* present at their report. 7ly. That the *Sheriffs* were grievously fined in *Starchamber* by particular name: And that this is a notable proof of the Jurisdiction of this *Court* for fining, &c. A notable pretident of his mistakes: when as there was no fine at all imposed on the *Sheriffs*, or any others, but the prisoners only restored to the *Sanctuary*, as the *Record* thereof informs us. 8ly. That the two Chief Justices then, did sit and were Judges amongst others, in that *Court* of *Starchamber*: when as they sat not in the *Starchamber*, not once named in the *Record*; but in the *Chancery*, as assistants to the *Chancellor* and *Treasurer*, to whom the *King* referred this case, and wherein all the proceedings then were, and still remain recorded. For the irrefragable proof of all which particular mistakes by the *Record* thereof, I shall here present you with its examined transcript.

REX Omnibus ad quos, &c. salutem. Inspeximus quoddam Recordum super quodam Brevi nostro Roberto Large nuper Majori, ac Philippo Malpas & Roberto Marchall nuper Vicecomitibus London. ad prosecutionem Decani et Capituli liberæ Capelle nostræ Sancti Martini Magni London. directo, et in filactis Cancellar. nostræ residens, factum in hæc verba. Dominus Rex misit

Hhh 2

Breve

Pat. 19 H. 6.
pars 3. m. 2.
dors. De Exemplificatione
pro Decano &
Capitulo S.
Martini Magni
London.